SAMPLE FIRM - CASE RESEARCH TEAM

Meridian Logistics v. Coastal Freight

Case Summary Memorandum

PRACTICE AREA	MATTER NO.	STATUS
Commercial Contracts - Force Majeure	2026-CV-0114	Active - research in progress

Parties

- Plaintiff: Meridian Logistics, Inc. ("Meridian"), a regional freight shipper.
- Defendant: Coastal Freight Brokers, LLC ("Coastal"), an ocean-freight booking broker.

Procedural Posture

Meridian filed suit in state court after Coastal cancelled a confirmed ocean-freight booking. Coastal has answered and moved to dismiss on force majeure and impracticability grounds; the motion is fully briefed and awaiting a hearing date.

Statement of Facts

Meridian booked a guaranteed ocean-freight slot with Coastal for a time-sensitive shipment of perishable goods. Four days before the sail date, a nine-day labor slowdown began at a container terminal roughly 40 miles from the contracted port of loading; the port of loading itself continued normal operations throughout the slowdown. Coastal cancelled the booking, invoking the contract's force majeure clause, which lists "labor disputes, strikes, or work stoppages" as excusing events. Meridian was forced to book emergency air freight at a cost of $340,000 above the original contract price and now seeks that amount in damages.

Legal Issues Presented

1. Whether a labor slowdown at a nearby-but-different terminal falls within a force majeure clause listing "labor disputes" without naming the specific port of loading.
2. Whether, even if the clause does not excuse performance, the slowdown made Coastal's performance impracticable under UCC Sec. 2-615, and whether Coastal gave the shipper reasonably prompt notice.

Relevant Authority

- Kel Kim Corp. v. Central Markets, Inc., 70 N.Y.2d 900 (1987) - force majeure clauses are construed narrowly to their express terms; the event claimed must be listed, not merely analogous to a listed event.
- UCC Sec. 2-615 (Excuse by Failure of Presupposed Conditions) - a seller's delay is excused only where performance became impracticable due to an event both parties assumed would not occur, and notice was reasonably prompt.

Current Status

Motion to dismiss pending. Case research is focused on whether the slowdown's location defeats the force majeure defense under Kel Kim, and, if so, whether Coastal has an independent impracticability defense under UCC Sec. 2-615.